

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

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LIZZIE ALICEA,

Plaintiff,

-against-

DETECTIVE STEVE SPINELLI, Shield No. 4443,
DETECTIVE MATTHEW EDELMAN, Shield No. 1856,
SERGEANT IGNAZIO CONCA, Shield No. 906,
DETECTIVE MICHAEL ZAK, Shield No. 5972, and
DETECTIVE FRANK MUZIKAR, Shield No. 20966,

Defendants.

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SUMMONS

Index No.:

The Basis of Venue is:
Location of Incident

Plaintiff designates RICHMOND
County as the place of trial.

To the above named Defendants:

You are hereby summoned to answer the verified complaint in this action, and to serve a copy of your answer, or, if the complaint is not served with this summons, to serve a notice of appearance on the Plaintiff's attorneys within twenty days after the service of this summons, exclusive of the day of service, where service is made by delivery upon you personally within the state, or, within 30 days after completion of service where service is made in any other manner. In case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the complaint.

DATED: New York, New York
October 29, 2018

Yours, etc.

/s/
JACOBS & HAZAN, LLP.
STUART E. JACOBS, ESQ.
Attorney for Plaintiff
30 Vesey Street, 4th Floor
New York, New York 10007
(212) 577-2690

TO: DETECTIVE STEVE SPINELLI, Shield No. 4443, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY
DETECTIVE MATTHEW EDELMAN, Shield No. 1856, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY
SERGEANT IGNAZIO CONCA, Shield No. 906, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY
DETECTIVE MICHAEL ZAK, Shield No. 5972, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY
DETECTIVE FRANK MUZIKAR, Shield No. 20966, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY

SUPREME COURT OF THE STATE OF NEW YORK
COUNTY OF RICHMOND

----- X

LIZZIE ALICEA,

Plaintiff,

INDEX NO.:

VERIFIED COMPLAINT

-against-

DETECTIVE STEVE SPINELLI, Shield No. 4443,
DETECTIVE MATTHEW EDELMAN, Shield No. 1856,
SERGEANT IGNAZIO CONCA, Shield No. 906,
DETECTIVE MICHAEL ZAK, Shield No. 5972, and
DETECTIVE FRANK MUZIKAR, Shield No. 20966,

JURY TRIAL DEMANDED

Defendants.

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Plaintiff, LIZZIE ALICEA, by her attorneys, Jacobs & Hazan, LLP, as and for her Verified Complaint herein, alleges upon information and belief as follows:

PRELIMINARY STATEMENT

1. This is a civil rights action to recover money damages arising out of defendants' violation of plaintiff's rights as secured by the Civil Rights Act, 42 U.S.C. Sections 1983 and 1988, and of rights secured by the Fourth, Fifth and Fourteenth Amendments to the United States Constitution. On October 29, 2015, at approximately 11:30 a.m., plaintiff Lizzie Alicea was lawfully present in front of 50 Dongan Hills Avenue, Staten Island, New York, when the defendant police officers unlawfully handcuffed and arrested plaintiff without probable cause or any legal justification. The defendants unlawfully seized, unlawfully handcuffed, falsely imprisoned and falsely arrested plaintiff without probable cause or any legal justification to believe plaintiff committed a crime or violated the law in any manner. The defendants transported plaintiff against her will to the 122nd precinct. Thereafter, the defendants denied plaintiff the right to due process and a fair trial and maliciously prosecuted plaintiff until all charges against plaintiff were dismissed and sealed on October 7, 2016. Plaintiff was deprived of her constitutional when the individual defendants unlawfully searched, confined, arrested, imprisoned, denied him rights to a fair trial, and maliciously prosecuted plaintiff in violation of the Fourth, Fifth and Fourteenth Amendments to the United States Constitution.

PARTIES

2. Plaintiff LIZZIE ALICEA is and was at all times relevant herein a resident of the State of New York.

3. DETECTIVE STEVE SPINELLI, Shield No. 4443, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

4. DETECTIVE STEVE SPINELLI, Shield No. 4443, is and was at all times relevant herein, assigned to the Staten Island Gang Squad.

5. DETECTIVE STEVE SPINELLI, Shield No. 4443, is being sued in his individual and official capacity.

6. DETECTIVE MATTHEW EDELMAN, Shield No. 1856, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

7. DETECTIVE MATTHEW EDELMAN, Shield No. 1856, was at all times relevant herein, assigned to the Staten Island Gang Squad.

8. DETECTIVE MATTHEW EDELMAN, Shield No. 1856, is being sued in his individual and official capacity.

9. SERGEANT IGNAZIO CONCA, Shield No. 906, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

10. SERGEANT IGNAZIO CONCA, Shield No. 906, is and was at all times relevant herein, assigned to the Staten Island Gang Squad.

11. SERGEANT IGNAZIO CONCA, Shield No. 906, is being sued in his individual and official capacity.

12. DETECTIVE MICHAEL ZAK, Shield No. 5972, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

13. DETECTIVE MICHAEL ZAK, Shield No. 5972, is and was at all times relevant herein, assigned to the Staten Island Gang Squad.

14. DETECTIVE MICHAEL ZAK, Shield No. 5972, is being sued in his individual and official capacity.

15. DETECTIVE FRANK MUZIKAR, Shield No. 20966, is and was at all times relevant herein, an officer, employee, and agent of the New York City Police Department.

16. DETECTIVE FRANK MUZIKAR, Shield No. 20966, is and was at all times relevant herein, assigned to the Staten Island Gang Squad.

17. DETECTIVE FRANK MUZIKAR, Shield No. 20966, is being sued in his individual and official capacity.

18. At all times relevant herein, the individual defendants were acting under color of state law in the course and scope of their duties and functions as agents, servants, employees and officers of the New York City Police Department, and otherwise performed and engaged in conduct incidental to the performance of their lawful functions in the course of their duties. They were acting for and on behalf of the New York City Police Department at all times relevant herein, with the power and authority vested in he as officers, agents and employees of the New York City Police Department and incidental to the lawful pursuit of their duties as officers, employees and agents of the New York City Police Department.

19. At all times relevant hereto, defendant CITY OF NEW YORK, operated, maintained managed, supervised and controlled the New York City Police Department ("NYPD") as part of and in conjunction with its municipal function.

20. Defendant City of New York is a municipal entity created and authorized under the laws of the State of New York. It is authorized by law to maintain a police department which acts as its agent in the area of law enforcement and for which it is ultimately responsible. The defendant City of New York assumes the risks incidental to the maintenance of a police force and the employment of police officers as said risks attach to the public consumers of the services provided by the New York City Police Department.

21. This action falls within one or more of the exceptions as set forth in CPLR Section 1602, involving intentional actions, as well as the defendant, and/or defendants, having acted in reckless disregard for the safety of others, as well as having performed intentional acts.

22. Plaintiff sustained damages in an amount in excess of the jurisdictional limits of all the lower Courts of the State of New York.

STATEMENT OF FACTS

23. By way of background, on October 29, 2015, at approximately 8:00 a.m., the defendant police officers allegedly executed a search warrant inside of plaintiff's mother's apartment located at 50 Dongan Hills Avenue, Apt. 1D, Staten Island, New York.

24. Notably, on October 29, 2015, plaintiff did not reside at 50 Dongan Hills Avenue, Apt. 1D, Staten Island, New York, nor was plaintiff physically present inside of the apartment when the defendant police officers executed the search warrant.

25. On October 29, 2015, at approximately 11:30 a.m., plaintiff arrived at 50 Dongan Hills Avenue, Staten Island, New York with the intention of visiting her mother.

26. Upon arrival at the apartment building, plaintiff saw police officers and saw her mother standing outside of the building crying.

27. Thereafter several police officers approached plaintiff and asked her if she lived at the subject location.

28. Plaintiff advised the defendant police officers that she did not in fact live in the apartment and she provided the defendant police officers with the address where she lived in Staten Island.

29. Despite being aware of the fact that plaintiff did not reside at 50 Dongan Hills Avenue, Apt. 1D, Staten Island, New York and despite not being physically present when the defendant police officers executed the search warrant, the defendant police nevertheless unlawfully handcuffed plaintiff and arrested her without probable cause or legal justification.

30. At no time relevant herein did defendants recover any illegal drugs, weapons, or contraband from plaintiff's person, or from a location that was in plaintiff's possession, custody, or control.

31. At no time relevant herein did plaintiff commit a crime or violate the law in any manner, nor did the defendant officers have probable cause to believe he committed a crime or violated the law.

32. Nevertheless, plaintiff was unlawfully handcuffed and transported against her will to the 122nd precinct where she was searched, photographed, fingerprinted, and detained in a filthy holding cell for many hours.

33. On October 29, 2015 at approximately 11:00 p.m., plaintiff was transported from the 122nd Precinct to Staten Island Central Booking and placed in a holding cell.

34. The defendant police officers intentionally provided the Richmond County District Attorney's Office with false, misleading and incomplete information regarding their basis for arresting and prosecuting plaintiff and falsely charged plaintiff with crimes she did not commit.

35. Based upon the false, misleading and/or incomplete information provided to the District Attorney's Office by the defendant police officers, a prosecution was initiated against plaintiff.

36. On October 30, 2015 at approximately 4:00 p.m., after approximately 29 hours in unlawful custody, plaintiff was arraigned in Staten Island Criminal Court and charged with crimes she did not commit.

37. Plaintiff was Criminal Possession of a Controlled Substance in the Seventh Degree.

38. On October 30, 2015 at approximately 4:00 p.m., after approximately 29 hours in custody, plaintiff was released on her own recognizance.

39. Thereafter, plaintiff was required to make approximately ten (10) additional court appearances until all charges against plaintiff were dismissed and sealed in their entirety on October 7, 2016.

40. Some of the police officer defendants observed the violation of plaintiff's rights under the Constitution of the United States and New York State Law and did nothing to prevent the unjustifiable search, seizure, false arrest, denial of the right to due process/ fair trial and malicious prosecution of plaintiff.

41. The unlawful search, false arrest/ imprisonment, denial of a right to fair trial, and malicious prosecution of plaintiff by the individually named defendants caused plaintiff to sustain physical, psychological and emotional trauma.

FIRST CAUSE OF ACTION

Violation of Plaintiff's Fourth Amendment, Fifth Amendment and Fourteenth Amendment Rights

42. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 41 with the same force and effect as if more fully set forth at length herein.

43. The individually named police officer defendants while acting in concert and within the scope of their authority, caused plaintiff to be unlawfully seized, unlawfully searched, falsely arrested, falsely imprisoned, denied of her right to fair trial and maliciously prosecuted without probable cause in violation of plaintiff's right to be free of unreasonable seizure under the Fourth Amendment to the Constitution of the United States, denial of his right to due process under the Fifth Amendment to the Constitution of the United States and to be free of deprivation of liberty under the Fourteenth Amendment to the Constitution of the United States.

44. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

SECOND CAUSE OF ACTION

False Arrest and False Imprisonment

45. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 44 with the same force and effect as if more fully set forth at length herein.

46. The acts and conduct of the defendants constitute false arrest and false imprisonment under the laws of the State of New York. Defendants intended to confine plaintiff

and, in fact, confined plaintiff, and plaintiff was conscious of the confinement. In addition, plaintiff did not consent to the confinement and the confinement was not otherwise privileged.

47. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

48. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

THIRD CAUSE OF ACTION

Unlawful Search

49. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 48 with the same force and effect as if more fully set forth at length herein.

50. The illegal approach, pursuit, stop and search employed by defendants herein terminated plaintiff's freedom of movement through means intentionally applied.

51. Defendants lacked probable cause to search plaintiff.

52. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

53. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

FOURTH CAUSE OF ACTION

Malicious Prosecution

54. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 53 with the same force and effect as if more fully set forth at length herein.

55. The acts and conduct of the defendants constitute malicious prosecution under the laws of the State of New York and New York State common law.

56. Defendants commenced and continued a criminal proceeding against plaintiff.

57. There was actual malice and an absence of probable cause for the criminal proceeding against plaintiff and for each of the charges for which they were prosecuted.

58. The prosecution and criminal proceedings terminated in plaintiff's favor on the aforementioned dates.

59. Plaintiff was subjected to a post-arraignment deprivation of liberty sufficient to implicate plaintiff's Fourth Amendment rights.

60. As a direct and proximate result of such acts, defendants deprived plaintiff of his rights under the laws of the State of New York and the United States Constitution.

61. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

62. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

FIFTH CAUSE OF ACTION

Denial of Right to Fair Trial/Due Process

63. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 62 with the same force and effect as if more fully set forth at length herein.

64. Defendants, individually and collectively, manufactured and/or withheld false evidence and forwarded this false evidence to prosecutors in the Richmond County District Attorney's Office.

65. Defendants filled out false and misleading police reports and forwarded them to prosecutors in the Richmond County District Attorney's Office.

66. Defendants signed false and misleading criminal court affidavits and forwarded them to prosecutors in the Richmond County District Attorney's Office.

67. In withholding/creating false evidence against plaintiff Lizzie Alicea, and in providing/withholding information with respect thereto, defendants violated plaintiff's constitutional right to due process and fair trial under the New York State Constitution and under the Due Process Clause of the Fifth Amendment to the Constitution of the United States and to be free to deprivation of liberty under the Fourteenth Amendment to the United States Constitution.

68. As a result of the foregoing, plaintiff Lizzie Alicea, sustained, inter alia, loss of the right to due process and a fair trial, loss of liberty, emotional distress, embarrassment and humiliation, lost earnings and deprivation of her constitutional rights.

69. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

70. The City, as the employer of the officer defendants, is responsible for their wrongdoing under the doctrine of *respondeat superior*.

71. As a result of the aforementioned conduct of defendants, plaintiff sustained injuries, including but not limited to emotional and psychological injuries.

SIXTH CAUSE OF ACTION

Failure to Intervene

72. The plaintiff repeats, reiterates and realleges each and every allegation contained in paragraphs marked 1 through 71 with the same force and effect as if more fully set forth at length herein.

73. Defendants had an affirmative duty to intervene on behalf of plaintiff, whose constitutional rights were being violated in their presence by other officers.

74. Defendants failed to intervene to prevent the unlawful conduct described herein.

75. As a result of the foregoing, plaintiff's liberty was restricted for an extended period of time, he was put in fear of his safety, and he was humiliated and subject to other physical constraints.

76. Defendants were at all times agents, servants, and employees acting within the scope of their employment by the City of New York and the New York City Police Department, which are therefore responsible for their conduct.

JURY DEMAND

77. Plaintiff hereby demands trial by jury of all issues properly triable thereby.

PRAYER FOR RELIEF

WHEREFORE, plaintiff Lizzie Alicea demands judgment against the defendants on each cause of action in amounts to be determined upon the trial of this action which exceeds the jurisdiction of lower courts, inclusive of punitive damages and attorneys' fees inclusive of costs and disbursements of this action, interest and such other relief as is appropriate under the law. That the plaintiff recover the cost of the suit herein, including reasonable attorneys fees pursuant to 42 U.S.C. § 1988.

Dated: New York, New York
October 29, 2018

By: _____/s/

STUART E. JACOBS
DAVID M. HAZAN
JACOBS & HAZAN, LLP
Attorneys for Plaintiff
30 Vesey Street, 4th Floor
New York, NY 10007
(212) 577-2690

TO: DETECTIVE STEVE SPINELLI, Shield No. 4443, Staten Island Gang Squad, One Police Plaza, Room 1100, NY, NY
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ATTORNEY'S VERIFICATION

STUART E. JACOBS, an attorney duly admitted to practice before the Courts of the State of New York, affirms the following to be true under the penalties of perjury:

I am a partner of the law firm of **JACOBS & HAZAN, LLP**, I have read the annexed **VERIFIED COMPLAINT** and know the contents thereof, and the same are true to my knowledge, except those matters therein which are stated to be alleged upon information and belief, and as to those matters I believe he to be true. The reason this verification is made by me and not Plaintiff is that Plaintiff does not reside in the county wherein I maintain my office.

DATED: New York, New York
October 29, 2018

/s/
STUART E. JACOBS